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Attorneys for Plaintiff

**UNITED STATES DISTRICT COURT
DISTRICT OF UTAH**

CODY WAYNE GREENLAND,

Plaintiff,

vs.

D.T. CANNON, C. KINNAMAN, S.
BLACKBURN; SGT. Q. ADAMSON,
American Fork Police Officers, AMERICAN
FORK CITY, by and through AMERICAN
FORK POLICE DEPARTMENT (AFPD); and
JOHN AND JANE DOES 1-10,

Defendants.

**ATTORNEY PLANNING
MEETING REPORT**

Civil No. 2:22-cv-00137-RJS

Judge Robert J. Shelby

Magistrate Judge: Dustin B. Pead

1. PRELIMINARY MATTERS:

- a. *Describe the nature of the claims and affirmative defenses:* Defendants' violation of his rights guaranteed by the United States Constitution, specifically the Fourth Amendment . Defendants deny all allegations and have set forth several affirmative defenses, including qualified immunity.
- b. This case is referred to a magistrate judge under 636(b)(1)(B).
- c. Pursuant to Fed. R. Civ. P. 26(f), a meeting was held on **March 28, 2022** via telephone. The following attended: Christina D. Isom, counsel for Plaintiff; Stewart B. Harman, counsel for Defendants.

- d. The parties will exchange by **April 25, 2022**, the initial disclosures required by Rule 26(a)(1).
 - e. Pursuant to Fed. R. Civ. P. 5(b)(2)(D), the parties agree to receive all items required to be served under Fed. R. Civ. P. 5(a) by either (i) notice of electronic filing, or (ii) email transmission. Such electronic service will constitute service and notice of entry as required by those rules. Any right to service by USPS mail is waived.
2. **DISCOVERY PLAN:** The parties jointly propose to the court the following discovery plan: *Use separate paragraphs or subparagraphs as necessary if the parties disagree.*
- a. **Discovery is necessary on the following subjects:**
Discovery is necessary on Plaintiff's claims and Defendants' asserted defenses.
 - b. **Discovery Phases**
Discovery will be conducted according to the schedule set forth herein.
 - c. **Designate the discovery methods to be used and the limitations to be imposed.**
 - (1) *For oral exam depositions, (i) specify the maximum number for the plaintiff(s) and the defendant(s), and (ii) indicate the maximum number of hours unless extended by agreement of the parties:*

Oral Exam Depositions -	
Plaintiff(s):	<u>15</u>
Defendant(s):	<u>15</u>
Maximum number of hours per deposition	<u>7</u>
 - (2) *For interrogatories, requests for admissions, and requests for production of documents, specify the maximum number that will be served on any party by any other party:*

Interrogatories	<u>20</u>
Requests for Admissions	<u>20</u>
Requests for production of documents	<u>20</u>
 - (3) Other discovery methods: *Subpoena.*
 - d. Discovery of electronically stored information should be handled as follows: *Documents will be produced in a pdf format on a disk or flash drive or by Dropbox. No ESI has yet been exchanged.*
 - e. The parties have agreed to an order regarding claims of privilege or protection as trial preparation material asserted after production, as follows: *The parties will address any such issues if and when they arise.*
 - f. Last day to file written discovery: 10/24/22

g. Close of fact discovery: 11/29/22

3. AMENDMENT OF PLEADINGS AND ADDITION OF PARTIES:

a. The cutoff dates for filing a motion to amend pleadings are:

Plaintiff(s) – 07/31/22 Defendant(s) – 07/31/22

b. The cutoff dates for filing a motion to join additional parties are:

Plaintiff(s) – 07/31/22 Defendants(s) – 07/31/22

(NOTE: Establishing cutoff dates for filing motions does not relieve counsel from the requirements of Fed. R. Civ. P. 15(a)).

4. EXPERT REPORTS:

a. The parties will disclose the subject matter and identity of their experts on:

Parties bearing burden of proof: 12/29/22

Counter Disclosures: 01/30/23

Rebuttal Disclosures: 02/24/23

b. Reports from experts under Rule 26(a)(2) will be submitted on:

Parties bearing burden of proof: 01/20/23

Counter Reports: 02/20/23

Rebuttal Reports 03/17/23

5. OTHER DEADLINES:

a. Expert Discovery cutoff: 03/30/23

b. Deadline for filing dispositive¹ or potentially dispositive motions including motions to exclude experts where expert testimony is required to prove the case:

04/15/23

c. Deadline for filing partial or complete motions to exclude expert testimony:

30 days before trial

6. ADR/SETTLEMENT:

Use separate paragraphs/subparagraphs as necessary if the parties disagree.

a. The potential for resolution before trial is: Cannot be determined at this time.

¹ Dispositive motions, if granted, resolve a claim or defense in the case; nondispositive motions, if granted, affect the case but do not resolve a claim or defense.

- b. The parties will reevaluate settlement after any ruling on dispositive motions.

7. TRIAL AND PREPARATION FOR TRIAL:

- a. The parties should have **14 days** after service of final lists of witnesses and exhibits to list objections under Rule 26(a)(3).
- b. This case should be ready for trial by: _____
Specify type of trial: Jury X Bench _____
- c. The estimated length of the trial is: *specify days* 7

/s/ Christina D. Isom
CHRISTINA D. ISOM
Attorney for Plaintiff

Date: 04/08/2022

DEFENSE FIRM

By permission

/s/ Stewart B. Harman
STEWART B. HARMAN
Attorney for Defendants

Date: 04/08/2022